



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 11, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202200949 (Incident Date: February 13, 2022) regarding Sergeant Bryant Harinarain, Tax No. 943352 (DADS No. 2023-28445)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted in connection with the allegation of an improper entry and search against Sergeant Harinarain.

In this matter, Sergeant Harinarain responded to a 911 call that evolved into a barricaded emotionally disturbed person (EDP). There was concern, expressed in the 911 call from a neighbor, about whether the suspected EDP's mother may have been in danger of harm from her son. Out of reasonable concern for the well-being of any occupants in the apartment, once the suspected EDP had exited into the hallway, Sergeant Harinarain authorized officers to perform a protective sweep of the apartment, merely for the limited purpose of ensuring that no one was injured or in need of medical attention inside, and not for evidence of a crime. Sergeant Harinarain was so clear that the search he authorized was limited to ensuring that there were no persons potentially in need of medical attention, that he refused the request from EMTs on the scene to have the officers entering the apartment attempt to seek out any medication which the suspected EDP may have been prescribed. The limited search authorized by Sergeant Harinarain was proper and authorized under the established emergency exception to the warrant requirement.

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Therefore, based on the foregoing, Sergeant Harinarain will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct/Abuse of Authority – Entry and Search).

Sincerely,


Anthony S. Marino
Inspector
Commanding Officer
Police Commissioner's Office

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